



File No.: EXP202308051

RESOLUTION OF TERMINATION OF THE PROCEDURE BY RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 7, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ESTUDIO ALCAZAR DEL GENIL 2022, S.L. (hereinafter, ESTUDIO ALCAZAR), through the agreement that is transcribed:

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File No.: EXP202308051

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On May 9, 2023, a complaint was filed with the Spanish Agency for Data Protection for a possible infringement attributable to ESTUDIO ALCAZAR DEL GENIL 2022, S.L. with NIF B09971029 (hereinafter, ESTUDIO ALCAZAR).

The facts brought to the attention of this authority were:

The complainant states that he was an employee of ESTUDIO ALCAZAR and that, on April 25, 2023, his superiors gathered the employees urging them to take photos and videos of the mailboxes of the Homeowners' Communities of the properties they visited to create a database, without obtaining the consent of the data subjects and without informing them in this regard. Specifically, he indicates that they had to provide the following data: the street, the block number, and the names appearing on the mailboxes along with the floor and door in which they reside. He claims that, upon refusing to carry out this action which he considers contrary to data protection regulations, he was dismissed.

Along with the written complaint, the following was submitted:

- Screenshot of the conversation in the WhatsApp app with the phone number ***PHONE.1 and date April 26, 2024, where the following messages appear at 14:50 hours: "A.A.A. I need to talk to you. If you have a second, I'll call you." The name of the contact with whom the conversation is being held and who appears on the complainant's mobile is: "B.B.B."

- Video in .mp4 format of the conversation held on April 26, 2023, at 14:52 hours, between the complainant and the phone number ***PHONE.1, in which they communicate the company's intention to dispense with his services based on his refusal to the method of collecting data from potential clients. From the conversation held, the following information is extracted:

[...] B.B.B.: Look, sorry son, I don't have much coverage. Let's see A.A.A., I've been thinking about what we talked about, [...] I didn't want to prolong it much more, and well, we've been talking with C.C.C. and D.D.D. because they are also partners of the company [...] Right now this is the only way we have to do the area and I'm really sorry but we can't reach any other agreement [...] I wanted to let you know that we have to dispense with you [...].

A.A.A.: But B.B.B., I understand, but you understand that what you asked me to do, to take photos of mailboxes, is illegal.

B.B.B.: A.A.A., photos, write it down, whatever, I can't do anything else, son, this is a matter of three, not just one, I can understand your position, but we can't do anything else, A.A.A.. I can't ask my colleagues to do one thing and you to do another, this is the way we have now to do the area and we can't do anything else.

A.A.A.: But B.B.B., you shouldn't be asking anyone to do that, to take photos of the mailboxes.

B.B.B.: Well A.A.A., it's what I told you, this depends on, ... we have the legal sector and that depends on them, I can't do anything there.

A.A.A.: Well, that's it, perfect if that's your decision.

B.B.B.: Of course, that's it.

B.B.B.: [...] it's just that A.A.A.: we don't have another way to work and I know that you obviously don't

agree, that this is not legal, you've informed yourself, I think that's great, but we can't do anything else."

- Phone numbers of the participants in the conversation from which the video was provided:

o Origin of the call: ***PHONE.1.

o Destination of said call: ***PHONE.2.

o Date: April 26, 2023, approximately at 14:55h.

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Photographs of mailboxes that have been uploaded to the database of ***EMPRESA.5, where the following names and door numbers are listed:

(...)

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to ESTUDIO ALCAZAR, so that it could proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. On July 13, 2023, a response letter from ESTUDIO ALCAZAR was received by this Agency, stating the following:

"(...) FIRST.- Estudio Alcázar del Genil 2022 SL hired the complainant, in accordance with the applicable agreement and salary, as a COMMERCIAL, that is, for the sale of residential properties (sales, prospecting, commercial area, etc.). The contract lasted only a month and a half, but, IN NO CASE, did this company propose/suggest/oblige/indicate to this worker, or to any other, what is stated in the prior complaint. Not because this party says so in its defense but because it is not the practice or tone of the company, especially since the brand ***EMPRESA.5 has an internal software/application where the databases whose consent has been lawfully obtained are recorded and which are used, if necessary, when promoting and selling properties; all of this, always with the prior interest shown by the client in the property in question (which is different from stating that the company seeks buyers or sellers indiscriminately by calling a phone number or similar in order to see if they sell or buy property). Furthermore, Estudio Alcázar del Genil 2022 S.L. is a company that, since its establishment, HAS NOT RECEIVED A SINGLE COMPLAINT (NEITHER FOR DATA PROTECTION NOR OF ANY OTHER TYPE), CLAIM, OR NEGATIVE REVIEW, but rather the opposite, especially when it operates in a neighborhood of ***LOCALIDAD.1 (it operates by areas to avoid "stepping on" other franchises of the brand that work in the city) which is "small," and in a market like this, doing it wrong is synonymous with, unfortunately, not selling, and therefore being doomed to business failure."

THIRD: On August 9, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VIII of the LOPDGDD.

As a result of the actions carried out, the following points have been noted:

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RESULT OF THE INVESTIGATIVE ACTIONS

(...) On December 22, 2023, ***EMPRESA.6 responded to this agency confirming that on April 26,

2023, at 14:52:15 hours, a call was made from the number ***TELÉFONO.1 to the number ***TELÉFONO.2 lasting 334 seconds, that is, 5 minutes and 34 seconds. It informs that the holder of the destination line is: E.E.E. with ID ***NIF.1 and address at ***DIRECCIÓN.1.

The complainant provided the number ***TELÉFONO.2 as their phone number in the complaint.

On December 29, 2023, ***EMPRESA.7 responded to the request of this agency, confirming that on April 26, 2023, at 14:52:16 hours, a call was made from the number ***TELÉFONO.1 to the number ***TELÉFONO.2 lasting 332 seconds. It also informs about the ownership of the line ***TELÉFONO.1 which corresponds to F.F.F. ID: ***NIF.2 and address: ***DIRECCIÓN.2.

(...) On April 1, 2024, a response from ESTUDIO ALCAZAR was received to the request of this Agency, in which:

1. It states that its company is the Data Controller of the clients' data.
2. It provides the franchise assignment contract in which it was substituted (as it had initially been signed by a different company), signed between ***EMPRESA.8, Estudio Alcázar, and ***EMPRESA.1 effective from June 1, 2022.
3. It states that: "only clients and data whose consents have been previously obtained and are duly legalized are used. This company does not carry out practices as referred to in the complaint made by G.G.G."
4. It is conducting, and will document before the end of the year, an audit in data protection and a CORPORATE COMPLIANCE which will be provided when completed.
5. It does not respond to the request for:
 - Record of the processing activities carried out under its responsibility (Art. 30 of the GDPR).
 - Purposes and legal bases for the processing activities (Art. 6 GDPR).

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- Contract or contracts of data processing signed by that company.
- Origin of the personal data of potential clients.
- Reports from the data protection audit and "CORPORATE COMPLIANCE" referred to in the aforementioned response of July 13, 2023, regarding the processing for which information is requested.

On April 30, 2024, a response is received from ***EMPRESA.1 stating:

"the companies of ***EMPRESA.2 act as data processors in relation to the personal data of end clients, including potential clients, for which the respective franchised entities are responsible."

[...] "the intervention of ***EMPRESA.1 is limited to providing the franchisees with client management software (a CRM) so that each franchised entity can use it at their discretion for the performance of their activity."

[...] "the flow of data basically starts when an interested party requests real estate intermediation services from one of our franchisees. Generally, but not necessarily, the franchised entities upload the data to the client management software (CRM) provided by ***EMPRESA.2 to the franchised entities as part of the franchise contract."

It is worth clarifying that each franchised entity only has access to the personal data of its clients or potential clients, and that not all data is shared among the franchised entities through the CRM. That is to say, the fact that they share the same software provider does not imply that data is shared with all users of that software.

Finally, and although we believe this is not the subject of this procedure, we only indicate that ***EMPRESA.2 manages the website ***URL.1. This website acts as a real estate portal. Thus, when a user of the website is interested in a property or in a geographical area to buy or sell a property, we forward that "lead" (potential interested party) to the corresponding franchised entity, acting as independent data controllers."

[...] "31. We do not provide instructions to the franchisees on how they should incorporate such data into the CRM or how they should obtain it. This is the competence and responsibility of each franchisee as the data controller.

32. From ***EMPRESA.1 we only explain to the franchisees how the CRM works. Regarding privacy, we inform them that the CRM has a tab to upload the document related to data protection, as well as another tab to indicate whether they have consent to send electronic commercial communications."

Attached is the "Agreement on the processing of personal data within the framework of the Franchise contract," generic, dated June 1, 2022, which states:

"The FRANCHISOR will act as the data processor of the FRANCHISEE regarding the personal data of the End Clients in accordance with the provisions of Article 28 of the GDPR (the "Data Processing Agreement").

The FRANCHISOR will act as (sub)processor of the FRANCHISEE who will act as the data controller or processor, as the case may be, of the processing, categories of personal data, and interested parties in relation to the Data Processing Agreement specified in Appendix A."

In "Appendix A," regarding "Nature and purpose of the processing," it is marked: "Structuring, Conservation, Consultation, Deletion, Conservation, Registration, and Others: Those other purposes necessary for the proper management and use of the CRM by the FRANCHISEE."

In "Categories of interested parties," the categories marked are: "Clients" and "Potential clients."

In "Type of personal data," it is marked: "Name/surname, Address, Email, Bank details, ID/NIE/Passport, Nationality, and Others: Those other personal data necessary for the proper management and use of the CRM by the franchisee, as well as for the proper attention to the End Clients, such as, for example, properties/commercial premises owned, properties/commercial premises for rent, or real estate interests, financing, or any other kind in relation to the services provided to End Clients."

In the inspection on November 20, 2024, at the headquarters of ***EMPRESA.1 at: ***DIRECCIÓN.3, the inspection report was incorporated into the file in the "Diligence Inspection Report (...)" of December 11, 2024, the representatives of the company state:

1. "The entity is a franchising company that does not engage in commercial activities nor processes client data, nor does it have commercial establishments on the street.

2. What they offer are franchise contracts to real estate operators, providing them with the brand, training, commercial advice, a territorial exclusivity, and a computer platform (CRM) called ***PLATAFORMA.1. New franchises are also offered commercial advice on how they can start and begin selling."

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3. In exchange, they receive a fixed royalty independent of the operations carried out by the franchisees.

4. Each franchisee is an independent real estate operator, also independent of the franchisor.

5. The company does not exercise control over customer data or the contacts registered by the franchisees, only over the buying and selling operations carried out, without including personal data in them.

6. In order to resolve technical incidents, they can access the customer database that is the responsibility of any franchisee.

7. Backup work of the CRM is also carried out, although they are unaware of the frequency and location where the servers are hosted. [...] After requesting to connect to the database of the defendant in ***LOCALITY.1, it is confirmed that in the database ***PLATFORM.2 of ***COMPANY.5 there is (Doc 9) a record corresponding to "H.H.H." from the street "****ADDRESS.4" as a client of "****COMPANY.9" in the CRM (Customer Management Program) of the defendant, which only contains

the name, surname, address, and date of the last contact: "30/07/2024", of the client, and does not contain a phone number or email address. In the "Privacy" box, it states: "Awaiting written privacy." In the "Source" field, it states: "Type of origin Internal collaborator, Source detail B.B.B., origin category Direct Management [...] System data (...) by B.B.B. 25/4/2023. 16:42 Last modification by J.J.J. 30/7/2024. 12:06." In Doc 13, the client "L.L.L." is listed without a phone number or email address, with a creation date of 11/04/2017.

In Doc 16, the client "M.M.M." is listed without a phone number or email address, with a creation date of 19/11/2024, and the client "N.N.N. ..." is listed without a phone number or email address with a creation date of 7/7/2015.

On December 4, 2024, a response is received from ***COMPANY.1 to the requests of this Agency recorded in the inspection report.

In the contract model of "Agreement for the processing of personal data within the framework of the franchise contract," it states:

"In the framework of the Processing assignment, the FRANCHISEE authorizes the FRANCHISOR to contract, on behalf of and for the account of the FRANCHISEE, with the commercial companies of ***COMPANY.2 the services of personal data processing, technical management, statistics, advice, training, and website for the purpose provided in this agreement and in the franchise contract.

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Likewise, the FRANCHISOR may, without prior authorization from the FRANCHISEE, subcontract third parties for auxiliary and standardized services for the normal functioning of corporate operations, even if this involves a (sub)processing of the personal data subject to this Processing assignment. Any other subcontracting by the FRANCHISOR that involves a (sub)processing of the personal data subject to this Processing assignment will require prior authorization from the FRANCHISEE. The subcontractor, who will also have the status of data processor, is equally obliged to comply with the obligations established in this document for the data processor. It is the responsibility of the FRANCHISOR to regulate the new relationship so that the new processor is subject to the same conditions (instructions, obligations, security measures) and with the same formal requirements as he is, regarding the proper processing of personal data and the guarantee of the rights of the affected individuals."

Regarding the request for a "Detailed explanation of how customer data appears reflected in the area management tables, indicating what circumstances cause them to be found in each of them," it states: "The purpose of processing the data that appears in the 'Area Management' table is the management of commercial prospecting for obtaining sales/rental assignments of properties in the area that is the competence of each franchised company" [...]

"The fourth view, WEAK RELATIONSHIP QUALITY (DISPERSION - NEVER AND >90), will show the properties that have no associated commercial prospecting activity and those properties where the last commercial prospecting activity was carried out more than 90 days ago." [...]

"The main objective, as already indicated, is to identify properties that may be sold or rented in the area of competence of the franchisee, using the first views - POTENTIAL ACQUISITION (FREQUENT FOLLOW-UP) and second - HIGH RELATIONSHIP QUALITY (FRIENDS IN THE AREA) to show those properties where the potential for obtaining a sales assignment is greater, either because reliable information is already available about the interest in selling/renting a certain property (first view), or (second view), to show those properties that, in case they can be offered for sale/rent, the news about that interest could reach the franchisee without the need for frequent follow-up of the property.

The third views - MEDIUM RELATIONSHIP QUALITY (<90 DAYS) and fourth - WEAK RELATIONSHIP QUALITY (DISPERSION - NEVER AND >90) show those properties on which the franchisee could consider carrying out an active information search periodically, to know if there is

interest from the owners in selling/renting their property (as already stated, the franchisee always limits himself to searching

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properties in the same area), depending on the volume of properties that are already being managed commercially, or whether direct intermediation is already being carried out on them. In the event that the franchised company has a sufficient and adequate portfolio of properties according to its commercial capacity, the commercial prospecting could be stopped or temporarily slowed down (it should be noted that franchised companies ***EMPRESA.5 are characterized by having reduced portfolios of properties on which they work intensively).

In light of the above, and in order to support the management or commercial prospecting, the platform proposes that it may be advisable for the interval between obtaining one piece of information and the next not to exceed 90 days, although this is a guideline that the franchisee may choose to follow or not; that is to say, it is a tool to assist in the commercial management of the properties. Therefore, in view four, those properties for which no information has ever been obtained, or for which the last information was obtained more than 90 days ago, appear. However, if information is received about any of the properties that appear in view four, that property will automatically move, depending on the type of information obtained, to one of the other views, disappearing from view four. It could also happen, among other scenarios, that a property that appears today in view three, after a period without receiving information, moves to view four, all without affecting in any case the "quality of the data" [...]

5. When a user creates an account on ***URL.1, who is responsible for the processing of the data collected in that form?

In relation to the processing of the data necessary to create an "account" or personal page in the domain "****URL.1", through which the user can save information about properties marketed by the franchised companies that may be of interest to them, as well as the "searches" for these (according to different search criteria), the entity responsible for the processing is ***EMPRESA.1.

6. Where is the customer database of the franchises of ***EMPRESA.5 physically hosted?

The CRM database "****EMPRESA.3", through which each franchised company manages its clients, is located in Frankfurt, Germany (the "zone management" views belong to the CRM "****EMPRESA.3").

7. What relationship do they have with "****EMPRESA.4"?

Between "****EMPRESA.4" (with its registered office in Italy) and "****EMPRESA.1" (with its registered office in Spain), there is a contractual relationship, which aims to grant by the former to the latter the use of the trademark "****EMPRESA.5" for its exploitation in Spain, among other countries."

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In the "Diligence creating web account ***COMPANY.5" dated November 19, 2024, the information obtained from creating an account on the website "****URL.1" is evidenced. The data controller presenting the privacy policy (automated translation from Italian using Google Translate: <https://translate.google.es>) is "****COMPANY.4".

On December 9, 2024, the administrator of the company ESTUDIO ALCAZAR responds to the request from this Agency. Regarding the information available about "H.H.H.", it states:

"H.H.H. is not a client of the company. However, in order to be diligent with this administration and to provide any information that may be relevant to the investigation, we inform you that the only information the company has about this gentleman is his name and surname, and his postal address, which are recorded in the database (***PLATFORM.1) as a potential client, more specifically as a prospect, as the agent of ***COMPANY.5 considered him to be a person who has the potential to be interested in our services, but as of the date of drafting this document, we have not yet been able to

contact him.

2. Source of the information about this client.

The data of this potential client comes from a public directory ***URL.2. This directory is a publicly accessible source, which, according to the privacy policy published on the website, commits to comply with and exceed the data protection standards established in the General Data Protection Regulation. Furthermore, this policy indicates that the information published on ***URL.2 comes from: a) sources and directories of a public nature; b) users of ***URL.2, who publish information they consider relevant regarding themselves.

Therefore, since it is an entity that publicly declares compliance with data protection regulations, that the data it processes is of a public nature and/or provided directly by the interested party (as seems to be the case since it is indicated on the portal that a registration process was carried out by the interested party before publishing that data), and that, to our knowledge, it has not been sanctioned by the data protection control authority to date, we consider it to be a lawful source of data.

Finally, it should be noted that this directory contains additional data beyond the name and surname and postal address of this gentleman; however, the agent of the office of ***COMPANY.5, in compliance with the principle of data minimization and ensuring the quality of the data recorded in our information systems, only registered in ***PLATFORM.1 those data that were strictly necessary to make initial contact with the potential client.

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Specifically, the agent of the office of ***COMPANY.5 attempted to contact the potential client at his postal address on two occasions; in January and June 2024, both without success.

We take this opportunity to inform you that, according to the usual procedure we follow in these cases, after three failed contact attempts, the data is deleted.

In order to document the aforementioned, we attach the following evidence to this document:

- Document 1. Screenshot of the data recorded on the website ***URL.2 dated November 28, 2024.
- Document 2. Evidence of the data registered in the company's database (***PLATFORM.1).
- Document 3. Evidence of the record of the contact attempts made.

[...]

Following our usual procedure, the agent of ***COMPANY.5, in order to comply with the duty to inform the interested party about the processing of their personal data, and the principles of fairness and transparency, when collecting personal data from a potential client from a publicly accessible source, provides the interested party with the information collected in Article 14 of the General Data Protection Regulation, within a reasonable time frame, and in any case: a) before one month from when the personal data was obtained, b) or in the first communication with the interested party, in accordance with the provisions of paragraph 3 of this provision, and with the provisions of the information duty guide published by the Spanish Data Protection Agency.

However, according to the aforementioned, in this case, since there are no further contact details available, there has been no first communication, as it has not been possible to establish initial contact with the potential client, and it is for this reason that the information regarding the processing of their personal data has not yet been provided to them.

In this case, providing the information regarding the processing of their personal data to the interested party in such a way that the data controller can retain evidence of it has proven impossible, as it would require processing additional data beyond what is strictly necessary for the purpose pursued by the processing.

In this regard, the company has no means of accessing additional data that would allow compliance with this requirement, as it requires in-person contact, which has not taken place.

Furthermore, we believe it is relevant to highlight that, if they had it, the company would be violating the principle of data minimization.

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However, the responsible party has taken appropriate measures to protect the rights, freedoms, and legitimate interests of the data subject, as required by Article 14.5 of the GDPR, when these circumstances arise."

In the "****DOCUMENT.1" the Record of Processing Activities is attached, which includes:

"PROCESSING

REAL ESTATE PROPOSALS

DESCRIPTION OF THE PROCESSING

Selection of properties that may interest potential buyers/tenants who have contacted ***COMPANY.5, expressing their interest in buying or renting a property. The selection is made based on the area references and the characteristics of the property indicated by the potential buyer/tenant and in relation to the data regarding concluded purchase or rental contracts (available properties) to subsequently show them the offer of available properties, by sending tailored real estate proposals to their preferences or scheduling an appointment at an office of ***COMPANY.5.

PURPOSE

Order management

LEGAL BASIS

Pre-contractual measures (6.1.b GDPR)

CATEGORY OF PERSONAL DATA

Identifying and contact data

Interests, likes, and preferences

Properties

CATEGORY OF DATA SUBJECTS

Potential buyers/tenants

Potential sellers/landlords

RECIPIENTS (INCLUDING PROCESSORS AND SUB-PROCESSORS)

n/a

PROCESSORS

***COMPANY.1

Note:

Provider tool

***PLATFORM.1

***COMPANY.1

Note provides support in receiving data from potential clients and subsequent referral to the corresponding franchise

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according to the area preferences of the potential client

SUB-PROCESSORS (VARIOUS)

INTERNATIONAL TRANSFERS

n/a"

The response to "7. Details of all possible sources of personal data of clients processed by your company," states:

"The personal data of the individuals with whom a client relationship is maintained is provided by the client themselves, either by contacting us directly at the office of ***COMPANY.5 or with

***COMPANY.1, the franchisor, which acts as the data processor.”

In the attached documents numbered: 5, 6, 7, 8, and 9, “Evidence of the information on data protection provided to clients” is sent.

In all the forms sent, the purpose of the processing is: “to provide the requested real estate intermediation services.”

No information has been found in the Record of Processing Activities regarding personal data obtained from public sources or from individuals with whom there has been no prior contact.

On December 31, 2024, a response is received from O.O.O., with ***NIF.3, “on behalf and representation of the commercial company ***COMPANY.1 in my capacity as CEO” responds to the request of December 12 from this Agency, stating:

“***COMPANY.1 does not have contracted auxiliary and standardized services that involve the processing or (sub)processing of personal data related to the data processing agreement with the franchisees; in any case, we can inform the Agency that the company ***COMPANY.10, which provides technology services to the group of companies and to the franchise networks, is the one that has contracted the auxiliary technological products and solutions that are necessary for the normal functioning of the information and communication technology services it provides, contracted through usage licenses, such as those from ***COMPANY.3.”

[...] ***COMPANY.1 has a single subcontracting related to the data processing agreement between franchisor and franchisee, whose purpose is the provision of services related to the CRM

“***COMPANY.3”, acting as the subcontracted company ***COMPANY.10

[...] ***COMPANY.10 is the company that directly signs the contracts for the provision of technology services and, where applicable, the data processing agreement with the franchisees, except for the CRM service

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“***COMPANY.3”, which is subscribed between the franchisees and ***COMPANY.1, acting ***COMPANY.10 as (sub)processor of the data processing.

[...] A copy of the aforementioned contract between ***COMPANY.1, the main processor of the data of the franchisees' clients included in ***PLATFORM.1, and ***COMPANY.10, which acts as (sub)processor of the data, is attached. The object of the attached contract is the provision of services related to the computer system “(...)” (DOC1). The contract includes the annex identified as:

“Agreement on the processing of personal data within the framework of the service provision contract.”

The provided contract includes: “IV.- The BORROWER has acquired from its owner the authorization for third-party use of the computer system ***APPLICATION.1” (hereinafter also the “CRM”), additionally contracting the services of updating, maintenance, integration, and technical support of the same.”

In the “App Diligence (...)” dated May 9, 2024, it is evidenced that in the “***APPLICATION.2” (App Store of ***COMPANY.11) the “***APPLICATION.3” of ***COMPANY.4 is offered, which appears as the developer. The content referenced by the “developer's privacy policy” is also attached: ***URL.3. Despite the request made on December 11, 2024, to ***COMPANY.1 for a copy of the contract with the provider of the CRM program “***COMPANY.3” and a copy of the data processing contract with the provider of that CRM program, in its response dated December 31, 2024, it includes a contract between two companies of the same group, in which the two signing representatives of the same are CEOs of ***COMPANY.1, as can be seen on page 22/25 (Active Social Bodies) of the “Diligence REPORT_***COMPANY.1” dated December 2, 2025.

Thus, a data processing contract with the company “***COMPANY.3”, which appears as the developer in the privacy policy of the previous paragraph, could not be obtained.

FIFTH: According to the report collected from the AXESOR tool, the entity ESTUDIO ALCAZAR is a company established in 2022, with a share capital of 3,000 euros.

LEGAL GROUNDS

I

Competence

According to the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

II

Procedure

Likewise, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringements committed, a sanctioning procedure is initiated.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file of actions will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

Article 4.1) of the GDPR defines "personal data" as:

"any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2) of the GDPR defines "processing" as:

"any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

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any other form of access, verification, or interconnection, limitation, suppression, or destruction."

In this case, according to the provisions of articles 4.1 and 4.2 of the GDPR, it is established that there is processing of personal data, since ESTUDIO ALCAZAR carries out, among other processes, the collection and storage of personal data of individuals, such as: name and surname, phone number, address, and email, among others.

Article 4.7 of the GDPR defines "data controller" or "controller":

"the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if Union law or the law of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its appointment may be established by Union law or the law of the Member States;"

Article 4.7 of the GDPR defines "data controller" or "controller":

8) "data processor" or "processor":

"the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller;"

ESTUDIO ALCAZAR carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of article 4.7 of the GDPR.

On April 1, 2024, a response was received from ESTUDIO ALCAZAR to the request of this Agency, in which it stated that its company is the Data Controller of customer data.

On April 30, 2024, a response was received from ***EMPRESA.1 stating:

"the companies of ***EMPRESA.2 act as data processors in relation to the personal data of end customers, including potential ones, for which the respective franchised entities are responsible."

Furthermore, ***EMPRESA.1 provided the "Personal Data Processing Agreement within the framework of the Franchise Contract" generic, dated June 1, 2022, which stated:

"THE FRANCHISOR will act as the data processor of the FRANCHISEE regarding the personal data of the End Customers in accordance with the provisions of article 28 GDPR (the "Processing Assignment").

The FRANCHISOR will act as (sub)processor of the FRANCHISEE who will act as the controller or processor, as the case may be, of the processing, categories of personal data, and data subjects in relation to the Processing Assignment specified in Appendix A."

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Consequently, if it is confirmed during the investigation that the infringement attributed by this agreement occurred, the alleged responsible party to be held administratively liable for the alleged breaches committed is ESTUDIO ALCAZAR, as the data controller of personal data.

IV

Unfulfilled obligation. Lawfulness of processing

The first paragraph of article 6 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

It is appropriate in this case to examine whether ESTUDIO ALCAZAR has a lawful basis for processing the personal data contained in the mailboxes of the Communities of Property Owners of the properties visited by the workers of ESTUDIO ALCAZAR.

Article 6 of the GDPR, relating to "Lawfulness of processing," determines in its paragraph 1 the circumstances under which the regulation allows the processing of personal data of a third party, which are referred to as "lawful bases." If none of these circumstances or conditions apply, the processing will not be legitimate or considered lawful under the GDPR.

In this case, the complainant states that, on April 25, 2023, their superiors gathered the workers of ESTUDIO ALCAZAR urging them to take photos and videos of the mailboxes of the Communities of Property Owners of the properties they visited to create a database, without obtaining the consent of the data subjects.

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The claimant provides evidence that ESTUDIO ALCAZAR would have carried out such a request to its workers. Specifically, in the conversation held on April 26, 2023, between the claimant and the phone number of their supervisor at ESTUDIO ALCAZAR, the following information is extracted:

A.A.A.: But B.B.B., I understand you, but you understand that what you have asked me to do, taking photos of mailboxes, is illegal.

B.B.B.: A.A.A., photos, note it down, whatever, I can't do anything else, son, this is a matter of three, not just one, I can understand your position, but we can't do anything else, A.A.A.

I can't ask my colleagues to do one thing while you do another; this is the way we have to manage the area now, and we can't do anything else.

A.A.A.: But B.B.B., you shouldn't be asking anyone to do that, to take photos of the mailboxes.

B.B.B.: Well, A.A.A., as I told you, this depends on... we have the legal department, and that depends on them, I can't do anything there."

In this conversation, the supervisor expressly acknowledges that this practice was being carried out by the workers and that it was part of the methodology implemented for area management. Furthermore, in response to the claimant's objection regarding the legality of the practice, the supervisor neither denies its existence nor provides a justification based on a lawful basis in accordance with Article 6.1 of the GDPR, but merely refers any questions about its validity to the "legal department."

Additionally, three photographs of different mailboxes are provided, indicating that they have been uploaded to the database of ***EMPRESA.5. Among others, the following name, surname, and door number appear: H.H.H.

In the investigative activities carried out by this Agency at the headquarters of ***EMPRESA.5, recorded in the Inspection Report of November 20, 2024, a record corresponding to "H.H.H." from the street "****DIRECCIÓN.4" is confirmed as a client of "****EMPRESA.9" in the CRM (Customer Management Program) of ESTUDIO ALCAZAR, which only includes the name, surname, address, and date of the last contact: "30/07/2024." In the "Source" field of the CRM, it states: "Type of source Internal Collaborator, Source detail B.B.B., source category Direct Management [...] System data (...) by B.B.B. 25/4/2023. 16:42 Last modification by J.J.J. 30/7/2024. 12:06."

The source of this information appears in ***PLATAFORMA.1 as "Internal Collaborator" and "Direct Management." The date April 25, 2023, which appears as the creation date of the record, is the day before the call that the claimant states they received from the director of the real estate agency.

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The respondent states in its writings that the source of the information is the "public directory ***URL.2." However, this directory does not include the apartment number, as it appears in the database of ***PLATAFORMA.1.

Given the concurrent circumstances, it is understood that there has been a collection of names, surnames, and addresses of the mailboxes of the Communities of Property Owners of the properties to create a database, without obtaining the consent of the data subjects for their processing, by ESTUDIO ALCAZAR, which would constitute an unlawful processing of personal data.

Therefore, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, it is considered that the known facts could constitute an infringement of procedure derived from the collection and retention of data from the mailboxes of property owner communities without legitimate grounds for doing so, attributable to ESTUDIO ALCAZAR, for violating the previously transcribed article.

V

Classification of the infringement of Article 6.1 of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the sole purposes of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will prescribe in three years, which constitute a substantial violation of the articles mentioned therein, and in particular, the following:

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b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679."

VI

Proposal for sanction for the infringement of Article 6 of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

For its part, Article 76 "Sanctions and corrective measures" of the LOPDGDD provides:

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“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having a data protection officer when it is not mandatory.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In the present case, considering the seriousness of the possible infringement, particularly regarding the consequences that its commission causes to the affected parties, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following circumstances, as contemplated in the aforementioned provisions.

Prior to this, the following circumstances are deemed to be present:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered (Article 83.2, letter a), of the GDPR): The seriousness of the infringement in this case is manifested in the fact that such behavior would not consist of an isolated case, but rather from the conversation provided by the complainant, it is inferred that it would be a common practice carried out by the respondent to collect personal data.
- Intentionality/Negligence in the infringement (Article 83.2, letter b), of the GDPR): The existence of gross negligence can be determined from the conversation held between the complainant and their supervisor at ESTUDIO ALCAZAR, who expressly acknowledges that this practice was part of the methodology implemented for area management, and in response to the complainant's objection regarding the...

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legality of the practice, the supervisor does not deny its existence, but merely refers any question regarding its validity to the "legal sector."

Furthermore, the following aggravating factors are considered:

- The connection of the infringer's activity with the processing of personal data (Article 76.2, letter b), of the LOPDGGDD): The evident connection between the business activity of ESTUDIO ALCAZAR and the

processing of personal data. The activity of ESTUDIO ALCAZAR as a real estate agency involves the processing of personal data of clients, owners, and tenants, including identifying, financial, and contractual information, which impacts the level of risk posed by the processing it carries out, both for clients and for third parties.

No mitigating circumstances are observed.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 6.1 of the GDPR, allows for an initial administrative fine of €10,000.00.

VII

Obligation not fulfilled. Information that must be provided when personal data has not been obtained from the data subject

According to the provisions of Article 14 of the GDPR:

"1. When personal data has not been obtained from the data subject, the data controller shall provide the following information:

- a) the identity and contact details of the controller and, where applicable, of their representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended, as well as the legal basis for the processing;
- d) the categories of personal data concerned;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a recipient in a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second subparagraph, reference to the appropriate safeguards and the means to obtain a copy thereof or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject with the following information necessary to ensure fair and transparent data processing with respect to the data subject:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;

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- b) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the data controller or a third party;

- c) the existence of the right to request the data controller access to personal data concerning the data subject, and its rectification or erasure, or the restriction of its processing, and to object to the processing, as well as the right to data portability;

- d) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;

- e) the right to lodge a complaint with a supervisory authority;

- f) the source from which the personal data originates and, where applicable, whether it comes from publicly accessible sources;

- g) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.

3. The data controller shall provide the information indicated in paragraphs 1 and 2:

- a) within a reasonable period, once the personal data has been obtained, and at the latest within one month, taking into account the specific circumstances in which the data is processed;

- b) if the personal data is to be used for communication with the data subject, at the latest at the time of

the first communication to that data subject, or

c) if it is intended to communicate them to another recipient, at the latest at the time when the personal data is first communicated.

4. When the data controller intends to further process the personal data for a purpose other than that for which it was obtained, it shall provide the data subject, prior to such further processing, information about that other purpose and any other pertinent information indicated in paragraph 2.

5. The provisions of paragraphs 1 to 4 shall not apply when and to the extent that:

a) the data subject already has the information;

b) the communication of such information proves impossible or would involve a disproportionate effort, in particular for processing for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, subject to the conditions and safeguards referred to in Article 89, paragraph 1, or to the extent that the obligation mentioned in paragraph 1 of this Article may prevent or seriously hinder the achievement of the objectives of such processing. In such cases, the controller shall take appropriate measures to protect the rights, freedoms, and legitimate interests of the data subject, including making the information public;

c) obtaining or communicating is expressly laid down by Union or Member State law applicable to the data controller and which provides for adequate measures to protect the legitimate interests of the data subject, or

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d) when personal data must continue to be kept confidential based on a professional secrecy obligation regulated by Union or Member State law, including a legal secrecy obligation."

Article 14 of the GDPR establishes the obligation of the data controller to provide clear and accessible information to the data subject when personal data has not been obtained directly from them. This obligation aims to ensure transparency in the processing of data, allowing data subjects to know the origin of their data, the purpose of the processing, the legal basis that supports it, the recipients of the information, the retention periods, and the rights that assist them, especially when the data has not been obtained directly from the data subjects, as the risk of loss of control and disposition by the data subject regarding their personal data is greater.

In this case, the complainant states that on April 25, 2023, their superiors gathered the employees of ESTUDIO ALCAZAR urging them to take photos and videos of the mailboxes of the Homeowners' Associations of the properties they visited to create a database. Furthermore, they indicate that no information was provided to the holders of said data regarding the processing of the collected data. Among the documentation provided by the complainant are three photographs of different mailboxes, which they state have been uploaded to the database of ***EMPRESA.5, showing the following name, surname, and door number: H.H.H.. In the investigative activities carried out by this Agency at the headquarters of ***EMPRESA.5, recorded in the Inspection Report of November 20, 2024, a record corresponding to "H.H.H." from the street "****DIRECCIÓN.4" is confirmed as a client of "****EMPRESA.9" in the CRM (Customer Management Program) Real Estate "****EMPRESA.3", in which only the name, surname, address, and date of the last contact: "30/07/2024" of the client are noted. In the "Source" field, it states: "Type source Internal collaborator, Source detail B.B.B., source category Direct Management [...] System data (...) by B.B.B. 25/4/2023. 16:42 Last modification by J.J.J. 30/7/2024. 12:06".

In their letter dated December 9, 2024, in response to the request from this Agency, ESTUDIO ALCAZAR states the following regarding the information it has on H.H.H.:

"H.H.H. is not a client of the company. However, in order to be diligent with this administration and provide any information that may be relevant to the investigation, we inform you that the only information the company has about this gentleman is his name and surname, and his postal address, which are included in the database (***PLATAFORMA.1) as a potential client, more specifically as a prospect, as the agent of ***EMPRESA.5, when registering his data, considered that he was a person

who has the potential to be interested in our services, but who, at the date of drafting this letter, has not yet been contacted.”

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Therefore, in accordance with the evidence available at this moment in the initiation of the sanctioning procedure, it is considered that the known facts could constitute a procedural infringement for failing to inform the data subjects in the terms of Article 14 of the GDPR that the personal data concerning them was being processed by the party complained against, which is attributable to ESTUDIO ALCAZAR, for violation of the previously transcribed article.

VIII

Classification of the infringement of Article 14 of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies the violation of the following articles as an administrative infringement, which will be sanctioned, according to paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"b) the rights of data subjects under Articles 12 to 22;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

“Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the sole purpose of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will prescribe in three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law."

IX

Proposal for sanction for the infringement of Article 14 of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

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2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damages suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damages suffered by the affected parties;

- d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor reported the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the graduated criteria established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.

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h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In the present case, considering the seriousness of the possible infringement, particularly regarding the consequences that its commission causes to the affected parties, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

For the purposes of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to scale the sanction to be imposed according to the following circumstances, as contemplated in the aforementioned provisions.

Prior to this, the following circumstances are deemed to be present:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered (Article 83.2, letter a), of the GDPR): the workers of ESTUDIO ALCAZAR. The seriousness of the infringement in this case is manifested in the fact that such behavior would not consist of an isolated case, but rather from the conversation provided by the complainant, it is evident that it would be a habitual practice carried out by the respondent party to collect personal data.

- Intentionality/Negligence in the infringement (Article 83.2, letter b), of the GDPR): The existence of gross negligence can be determined from the conversation held between the complainant and their supervisor at ESTUDIO ALCAZAR, who expressly acknowledges that this practice was part of the methodology implemented for area management, and in response to the complainant's objection regarding the legality of the practice, the supervisor does not deny its existence but merely refers any questions about its validity to the "legal sector."

Furthermore, the following aggravating factors are considered:

- The link between the infringer's activity and the processing of personal data (Article 76.2, letter b), of the LOPDGDD): The evident link between the business activity of ESTUDIO ALCAZAR and the processing of personal data. ESTUDIO ALCAZAR's activity as a real estate agency involves the processing of personal data of clients, owners, and tenants, including identifying, financial, and contractual information, which impacts the level of risk posed by the processing it carries out, both for clients and for third parties.

No mitigating circumstances are observed.

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The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions of Article 14 of the GDPR, initially allows for the imposition of an administrative fine of €10,000.00.

X

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 6.1 of the GDPR and Article 14 of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations are in compliance with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time frame..."

Thus, the responsible entity may be required to adjust its actions to comply with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the presumed infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures should be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, the resolution adopted may require ESTUDIO ALCAZAR to adopt the following measures within 2 months from the date of effectiveness of the resolution concluding this procedure:

- Prove the deletion of the personal data collected from the mailboxes of the Homeowners' Associations.

- Prove the communication to the interested parties of the information required by Article 14 of the GDPR regarding the processing of personal data.

- Cease the processing of personal data collected from the mailboxes of the Homeowners' Associations.

The imposition of these measures is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the resolution of the present sanctioning procedure may be considered an administrative infringement

in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of a further sanctioning administrative procedure. Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, if applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the necessary measures to cease the conduct or correct the effects of the infringement committed and to prove compliance with this obligation before the AEPD.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against ESTUDIO ALCAZAR DEL GENIL 2022, S.L., with NIF B09971029, for the presumed infringement of Articles 6.1 of the GDPR and Article 14 of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT R.R.R. as instructor and S.S.S. as secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction, an administrative fine of:

- €10,000.00 for the infringement of Article 6 of the GDPR.

- €10,000.00 for the infringement of Article 14 of the GDPR.

FIFTH: TO NOTIFY this agreement to ESTUDIO ALCAZAR DEL GENIL 2022, S.L., with NIF B09971029, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number indicated in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be established at €16,000.00, concluding the procedure with the imposition of this sanction.

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In the same way, at any time prior to the resolution of this procedure, the voluntary payment of the proposed sanction may be made, which will entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 16,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 12,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction.

For these purposes, in the event of opting for either of them, a communication of the express withdrawal or renunciation of any action or administrative appeal against the sanction must be sent to the General Subdirectorate of Data Inspection, indicating which of the two reductions is being opted for or if it is for both.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above (16,000.00 euros or 12,000.00 euros), you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are opting.

Likewise, you must send the proof of deposit to the General Subdirector of Inspection along with the express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, the notifications sent to you will be carried out exclusively electronically, through the Unique Enabled Electronic Address (dehu.redsara.es) and the Electronic Headquarters (sedeagpd.gob.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal can be made against this act.

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1479-111224

Olga Pérez Sanjuán

The General Subdirector of Data Inspection, in accordance with Article 48.2 of the LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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SECOND: On February 21, 2025, ESTUDIO ALCAZAR proceeded to pay the sanction in the amount of 12,000.00 euros, making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: In the initiation agreement transcribed above, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

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Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the imposition of the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation."

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making the voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 12,000.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, ESTUDIO ALCAZAR has proceeded to acknowledge responsibility and make the voluntary payment of the sanction, availing itself of the two reductions provided. In accordance with section 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other matters arising from it.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES: FIRST: TO DECLARE the commission of the infractions and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts totals 20,000.00 euros.

After ESTUDIO ALCAZAR DEL GENIL 2022, S.L. has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is granted, in accordance with Article 85 of the LPACAP, which results in a final amount of 12,000.00 euros. The effectiveness of the aforementioned reductions is, in any case, conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway.

SECOND: TO DECLARE the termination of procedure EXP202308051, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER ESTUDIO ALCAZAR DEL GENIL 2022, S.L. to notify the Agency of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution, within a period of 2 months from the date this resolution becomes firm and enforceable.

FOURTH: TO NOTIFY this resolution to ESTUDIO ALCAZAR DEL GENIL 2022, S.L.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility upon the withdrawal or renunciation of any action or appeal in the administrative pathway, this resolution will be firm in the administrative pathway and fully enforceable from the date of its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

1259-260325

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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